

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2249

By: Waldron

AS INTRODUCED

An Act relating to firearms; directing the Department of Public Safety to provide free firearm locks to Oklahoma residents; directing the Department to collaborate with other agencies to create a public safety campaign; amending 21 O.S. 2021, Section 1290.14, as amended by Section 1, Chapter 156, O.S.L. 2024 (21 O.S. Supp. 2024, Section 1290.14), which relates to the Oklahoma Self-Defense Act; clarifying course content requirement; amending 68 O.S. 2021, Section 1357, as last amended by Section 4, Chapter 363, O.S.L. 2024 (68 O.S. Supp. 2024, Section 1357), which relates to general sales tax exemptions; exempting firearm safes and firearm safety devices; defining terms; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1289.31 of Title 21, unless there is created a duplication in numbering, reads as follows:

A. Subject to the availability of funds appropriated for this purpose, the Department of Public Safety shall provide free firearm locks to an Oklahoma resident upon the request of the resident. The

1 Department shall prominently display on its website instructions for
2 requesting free firearm locks.

3 B. The Department shall collaborate with the Oklahoma State
4 Bureau of Investigation, and other state agencies as the Department
5 deems appropriate, to create a public safety campaign dedicated to
6 safe firearm storage using funds specifically appropriated for that
7 purpose.

8 SECTION 2. AMENDATORY 21 O.S. 2021, Section 1290.14, as
9 amended by Section 1, Chapter 156, O.S.L. 2024 (21 O.S. Supp. 2024,
10 Section 1290.14), is amended to read as follows:

11 Section 1290.14.

12 SAFETY AND TRAINING COURSE

13 A. Each applicant for a license to carry a concealed or
14 unconcealed handgun pursuant to the Oklahoma Self-Defense Act must
15 successfully complete a firearms safety and training course in this
16 state conducted by a registered and approved firearms instructor as
17 provided by the provisions of this section or from an interactive
18 online firearms safety and training course available electronically
19 via the Internet approved and certified by the Council on Law
20 Enforcement Education and Training. The applicant must further
21 demonstrate competence and qualification with an authorized pistol
22 to carry as a concealed or unconcealed handgun pursuant to the
23 provisions of the Oklahoma Self-Defense Act, except certain persons
24

1 may be exempt from such training requirement as provided by the
2 provisions of Section 1290.15 of this title.

3 B. The Council on Law Enforcement Education and Training
4 (CLEET) shall establish criteria for approving firearms instructors
5 and interactive online firearms safety and training courses
6 available electronically via the Internet for purposes of training
7 and qualifying individuals for a handgun license pursuant to the
8 provisions of the Oklahoma Self-Defense Act. Prior to submitting an
9 application for CLEET approval as a firearms instructor, applicants
10 shall attend a firearms instructor school, meeting the following
11 minimum requirements:

12 1. Firearms instructor training conducted by one of the
13 following entities:

- 14 a. Council on Law Enforcement Education and Training,
- 15 b. National Rifle Association,
- 16 c. Oklahoma Rifle Association,
- 17 d. federal law enforcement agencies, or
- 18 e. other professionally recognized organizations;

19 2. The course shall be at least sixteen (16) hours in length;

20 3. Upon completion of the course, the applicant shall be
21 qualified to provide instruction on pistols; and

22 4. Receive a course completion certificate.

23 All firearms instructors shall be required to meet the
24 eligibility requirements for a handgun license as provided in

1 Sections 1290.9, 1290.10, and 1290.11 of this title and the
2 application shall be processed as provided for applicants in Section
3 1290.12 of this title, including the state and national criminal
4 history records search and fingerprint search. A firearms
5 instructor shall be required to pay a fee of One Hundred Dollars
6 (\$100.00) to the Council on Law Enforcement Education and Training
7 (CLEET) each time the person makes application for CLEET approval as
8 a firearms instructor pursuant to the provisions of the Oklahoma
9 Self-Defense Act. The fee shall be retained by CLEET and shall be
10 deposited into the Firearms Instructors Revolving Fund. CLEET shall
11 promulgate the rules, forms and procedures necessary to implement
12 the approval of firearms instructors as authorized by the provisions
13 of this subsection. CLEET shall periodically review each approved
14 instructor during a training and qualification course to assure
15 compliance with the rules and course contents. Any violation of the
16 rules may result in the revocation or suspension of CLEET and
17 Oklahoma State Bureau of Investigation approval. Unless the
18 approval has been revoked or suspended, a firearms instructor's
19 CLEET approval shall be for a term of five (5) years. CLEET shall
20 be responsible for notifying all approved firearms instructors of
21 statutory and policy changes related to the Oklahoma Self-Defense
22 Act. A firearms instructor shall not be required to submit his or
23 her fingerprints for a fingerprint search when renewing a firearms
24 instructor's CLEET approval.

C. 1. All firearms instructors approved by CLEET to train and qualify individuals for a handgun license shall be required to apply for registration with the Oklahoma State Bureau of Investigation after receiving CLEET approval. All firearms instructors teaching the approved course for a handgun license must display their registration certificate during each training and qualification course. Each approved firearms instructor shall complete a registration form provided by the Bureau and shall have the option to pay a registration fee of either One Hundred Dollars (\$100.00) for a five-year registration certificate or Two Hundred Dollars (\$200.00) for a ten-year registration certificate to the Bureau at the time of each application for registration, except as provided in paragraph 2 of this subsection. Registration certificates issued by the Bureau shall be valid for a period of five (5) years or ten (10) years from the date of issuance. The Bureau shall issue a five-year or ten-year handgun license to an approved firearms instructor at the time of issuance of a registration certificate and no additional fee shall be required or charged. The Bureau shall maintain a current listing of all registered firearms instructors in this state. Nothing in this paragraph shall be construed to eliminate the requirement for registration and training with CLEET as provided in subsection B of this section. Failure to register or be trained as required shall result in a revocation or suspension of the instructor certificate by the Bureau.

1 2. Registered instructors listed in subparagraphs a and b of
2 this paragraph shall not be required to renew the firearms
3 instructor registration certificate with the Oklahoma State Bureau
4 of Investigation at the expiration of the registration term,
5 provided the instructor is not subject to any suspension or
6 revocation of the firearms instructor certificate. The firearms
7 instructor registration with the Oklahoma State Bureau of
8 Investigation shall automatically renew together with the handgun
9 license authorized in paragraph 1 of this subsection for an
10 additional five-year term and no additional cost or fee may be
11 charged for the following individuals:

- 12 a. an active duty law enforcement officer of this state
13 or any of its political subdivisions or of the federal
14 government who has a valid CLEET approval as a
15 firearms instructor pursuant to the Oklahoma Self-
16 Defense Act, and
17 b. a retired law enforcement officer authorized to carry
18 a firearm pursuant to Section 1289.8 of this title who
19 has a valid CLEET approval as a firearms instructor
20 pursuant to the Oklahoma Self-Defense Act.

21 D. The Oklahoma State Bureau of Investigation shall approve
22 registration for a firearms instructor applicant who is in full
23 compliance with CLEET rules regarding firearms instructors and the
24 provisions of subsection B of this section, if completion of the

1 federal fingerprint search is the only reason for delay of
2 registration of that firearms instructor applicant. Upon receipt of
3 the federal fingerprint search information, if the Bureau receives
4 information which precludes the person from having a handgun
5 license, the Bureau shall revoke both the registration and the
6 handgun license previously issued to the firearms instructor.

7 E. The required firearms safety and training course and the
8 actual demonstration of competency and qualification required of the
9 applicant shall be designed and conducted in such a manner that the
10 course can be reasonably completed by the applicant within an eight-
11 hour period. CLEET shall establish the course content and
12 promulgate rules, procedures and forms necessary to implement the
13 provisions of this subsection. For the training and qualification
14 course, an applicant may be charged a fee which shall be determined
15 by the instructor or entity that is conducting the course. The
16 maximum class size shall be determined by the instructor conducting
17 the course; provided, however, practice shooting sessions shall not
18 have more than ten participating students at one time. CLEET may
19 establish criteria for assistant instructors and any other
20 requirements deemed necessary to conduct a safe and effective
21 training and qualification course. The course content shall include
22 a safety inspection of the firearm to be used by the applicant in
23 the training course; instruction on pistol handling, safety and safe
24 storage methods for firearms; dynamics of ammunition and firing;

1 methods or positions for firing a pistol; information about the
2 criminal provisions of ~~the~~ Oklahoma ~~law~~ laws relating to firearms;
3 the requirements of the Oklahoma Self-Defense Act as it relates to
4 the applicant; self-defense and the use of appropriate force; a
5 practice shooting session; and a familiarization course. The
6 firearms instructor shall refuse to train or qualify any person when
7 the pistol to be used or carried by the person is either deemed
8 unsafe or unfit for firing or is a weapon not authorized by the
9 Oklahoma Self-Defense Act. The course shall provide an opportunity
10 for the applicant to qualify himself or herself with a pistol;
11 provided, no pistol shall be capable of firing larger than .45
12 caliber ammunition. Any applicant who successfully trains and
13 qualifies himself or herself with a pistol shall be approved by the
14 firearms instructor on the training certificate. Upon successful
15 completion of the training and qualification course, a certificate
16 of training and a certificate of competency and qualification shall
17 be issued to each applicant who successfully completes the course.
18 The certificate of training and certificate of competency and
19 qualification shall comply with the forms established by CLEET and
20 shall be submitted with an application for a handgun license
21 pursuant to the provisions of paragraph 2 of subsection A of Section
22 1290.12 of this title. The certificate of training and certificate
23 of competency and qualification issued to an applicant shall be
24 valid for a period of three (3) years.

1 F. There is hereby created a revolving fund for the Council on
2 Law Enforcement Education and Training (CLEET), to be designated the
3 "Firearms Instructors Revolving Fund". The fund shall be a
4 continuing fund, not subject to fiscal year limitations, and shall
5 consist of all funds received for approval of firearms instructors
6 for purposes of the Oklahoma Self-Defense Act. All funds received
7 shall be deposited to the fund. All monies accruing to the credit
8 of the fund are hereby appropriated and may be budgeted and expended
9 by the Council on Law Enforcement Education and Training, for
10 implementation of the training and qualification course contents,
11 approval of firearms instructors and any other CLEET requirement
12 pursuant to the provisions of the Oklahoma Self-Defense Act or as
13 may otherwise be deemed appropriate by CLEET. Expenditures from the
14 fund shall be made upon warrants issued by the State Treasurer
15 against claims filed as prescribed by law with the Director of the
16 Office of Management and Enterprise Services for approval and
17 payment.

18 G. Firearms instructors shall keep on file for a period of not
19 less than three (3) years a roster of each training class, the
20 safety test score of each individual, the caliber and the weapon
21 each individual used when qualifying and whether or not each
22 individual successfully completed the training course. Firearms
23 instructors shall be authorized to destroy all training documents
24 and records upon expiration of the three-year time period.

1 SECTION 3. AMENDATORY 68 O.S. 2021, Section 1357, as
2 last amended by Section 4, Chapter 363, O.S.L. 2024 (68 O.S. Supp.
3 2024, Section 1357), is amended to read as follows:

4 Section 1357. Exemptions - General.

5 There are hereby specifically exempted from the tax levied by
6 the Oklahoma Sales Tax Code:

7 1. Transportation of school pupils to and from elementary
8 schools or high schools in motor or other vehicles;

9 2. Transportation of persons where the fare of each person does
10 not exceed One Dollar (\$1.00), or local transportation of persons
11 within the corporate limits of a municipality except by taxicabs;

12 3. Sales for resale to persons engaged in the business of
13 reselling the articles purchased, whether within or without the
14 state, provided that such sales to residents of this state are made
15 to persons to whom sales tax permits have been issued as provided in
16 the Oklahoma Sales Tax Code. This exemption shall not apply to the
17 sales of articles made to persons holding permits when such persons
18 purchase items for their use and which they are not regularly
19 engaged in the business of reselling; neither shall this exemption
20 apply to sales of tangible personal property to peddlers, solicitors
21 and other salespersons who do not have an established place of
22 business and a sales tax permit. The exemption provided by this
23 paragraph shall apply to sales of motor fuel or diesel fuel to a
24 Group Five vendor, but the use of such motor fuel or diesel fuel by

1 the Group Five vendor shall not be exempt from the tax levied by the
2 Oklahoma Sales Tax Code. The purchase of motor fuel or diesel fuel
3 is exempt from sales tax when the motor fuel is for shipment outside
4 this state and consumed by a common carrier by rail in the conduct
5 of its business. The sales tax shall apply to the purchase of motor
6 fuel or diesel fuel in Oklahoma by a common carrier by rail when
7 such motor fuel is purchased for fueling, within this state, of any
8 locomotive or other motorized flanged wheel equipment;

9 4. Sales of advertising space in newspapers and periodicals;

10 5. Sales of programs relating to sporting and entertainment
11 events, and sales of advertising on billboards (including signage,
12 posters, panels, marquees or on other similar surfaces, whether
13 indoors or outdoors) or in programs relating to sporting and
14 entertainment events, and sales of any advertising, to be displayed
15 at or in connection with a sporting event, via the Internet,
16 electronic display devices or through public address or broadcast
17 systems. The exemption authorized by this paragraph shall be
18 effective for all sales made on or after January 1, 2001;

19 6. Sales of any advertising, other than the advertising
20 described by paragraph 5 of this section, via the Internet,
21 electronic display devices or through the electronic media including
22 radio, public address or broadcast systems, television (whether
23 through closed circuit broadcasting systems or otherwise), and cable
24

1 and satellite television, and the servicing of any advertising
2 devices;

3 7. Eggs, feed, supplies, machinery, and equipment purchased by
4 persons regularly engaged in the business of raising worms, fish,
5 any insect, or any other form of terrestrial or aquatic animal life
6 and used for the purpose of raising same for marketing. This
7 exemption shall only be granted and extended to the purchaser when
8 the items are to be used and in fact are used in the raising of
9 animal life as set out above. Each purchaser shall certify, in
10 writing, on the invoice or sales ticket retained by the vendor that
11 the purchaser is regularly engaged in the business of raising such
12 animal life and that the items purchased will be used only in such
13 business. The vendor shall certify to the Oklahoma Tax Commission
14 that the price of the items has been reduced to grant the full
15 benefit of the exemption. Violation hereof by the purchaser or
16 vendor shall be a misdemeanor;

17 8. Sale of natural or artificial gas and electricity, and
18 associated delivery or transmission services, when sold exclusively
19 for residential use. Provided, this exemption shall not apply to
20 any sales tax levied by a city or town, or a county or any other
21 jurisdiction in this state;

22 9. In addition to the exemptions authorized by Section 1357.6
23 of this title, sales of drugs sold pursuant to a prescription
24 written for the treatment of human beings by a person licensed to

1 prescribe the drugs, and sales of insulin and medical oxygen.

2 Provided, this exemption shall not apply to over-the-counter drugs;

3 10. Transfers of title or possession of empty, partially
4 filled, or filled returnable oil and chemical drums to any person
5 who is not regularly engaged in the business of selling, reselling
6 or otherwise transferring empty, partially filled or filled
7 returnable oil drums;

8 11. Sales of one-way utensils, paper napkins, paper cups,
9 disposable hot containers, and other one-way carry out materials to
10 a vendor of meals or beverages;

11 12. Sales of food or food products for home consumption which
12 are purchased in whole or in part with coupons issued pursuant to
13 the federal food stamp program as authorized by Sections 2011
14 through 2029 of Title 7 of the United States Code, as to that
15 portion purchased with such coupons. The exemption provided for
16 such sales shall be inapplicable to such sales upon the effective
17 date of any federal law that removes the requirement of the
18 exemption as a condition for participation by the state in the
19 federal food stamp program;

20 13. Sales of food or food products, or any equipment or
21 supplies used in the preparation of the food or food products to or
22 by an organization which:

- 23 a. is exempt from taxation pursuant to the provisions of
24 Section 501(c)(3) of the Internal Revenue Code, 26

1 U.S.C., Section 501(c)(3), and which provides and
2 delivers prepared meals for home consumption to
3 elderly or homebound persons as part of a program
4 commonly known as "Meals on Wheels" or "Mobile Meals",
5 or

6 b. is exempt from taxation pursuant to the provisions of
7 Section 501(c)(3) of the Internal Revenue Code, 26
8 U.S.C., Section 501(c)(3), and which receives federal
9 funding pursuant to the Older Americans Act of 1965,
10 as amended, for the purpose of providing nutrition
11 programs for the care and benefit of elderly persons;

12 14. a. Sales of tangible personal property or services to or
13 by organizations which are exempt from taxation
14 pursuant to the provisions of Section 501(c)(3) of the
15 Internal Revenue Code, 26 U.S.C., Section 501(c)(3),
16 and:

17 (1) are primarily involved in the collection and
18 distribution of food and other household products
19 to other organizations that facilitate the
20 distribution of such products to the needy and
21 such distributee organizations are exempt from
22 taxation pursuant to the provisions of Section
23 501(c)(3) of the Internal Revenue Code, 26
24 U.S.C., Section 501(c)(3), or

1 (2) facilitate the distribution of such products to
2 the needy.

3 b. Sales made in the course of business for profit or
4 savings, competing with other persons engaged in the
5 same or similar business shall not be exempt under
6 this paragraph;

7 15. Sales of tangible personal property or services to
8 children's homes which are located on church-owned property and are
9 operated by organizations exempt from taxation pursuant to the
10 provisions of the Internal Revenue Code, 26 U.S.C., Section
11 501(c) (3);

12 16. Sales of computers, data processing equipment, related
13 peripherals, and telephone, telegraph or telecommunications service
14 and equipment for use in a qualified aircraft maintenance or
15 manufacturing facility. For purposes of this paragraph, "qualified
16 aircraft maintenance or manufacturing facility" means a new or
17 expanding facility primarily engaged in aircraft repair, building or
18 rebuilding whether or not on a factory basis, whose total cost of
19 construction exceeds the sum of Five Million Dollars (\$5,000,000.00)
20 and which employs at least two hundred fifty (250) new full-time-
21 equivalent employees, as certified by the Oklahoma Employment
22 Security Commission, upon completion of the facility. In order to
23 qualify for the exemption provided for by this paragraph, the cost
24 of the items purchased by the qualified aircraft maintenance or

1 manufacturing facility shall equal or exceed the sum of Two Million
2 Dollars (\$2,000,000.00);

3 17. Sales of tangible personal property consumed or
4 incorporated in the construction or expansion of a qualified
5 aircraft maintenance or manufacturing facility as defined in
6 paragraph 16 of this section. For purposes of this paragraph, sales
7 made to a contractor or subcontractor that has previously entered
8 into a contractual relationship with a qualified aircraft
9 maintenance or manufacturing facility for construction or expansion
10 of such a facility shall be considered sales made to a qualified
11 aircraft maintenance or manufacturing facility;

12 18. Sales of the following telecommunications services:

13 a. Interstate and International "800 service". "800
14 service" means a telecommunications service that
15 allows a caller to dial a toll-free number without
16 incurring a charge for the call. The service is
17 typically marketed under the name "800", "855", "866",
18 "877" and "888" toll-free calling, and any subsequent
19 numbers designated by the Federal Communications
20 Commission,

21 b. Interstate and International "900 service". "900
22 service" means an inbound toll telecommunications
23 service purchased by a subscriber that allows the
24 subscriber's customers to call in to the subscriber's

1 prerecorded announcement or live service. 900 service
2 does not include the charge for: collection services
3 provided by the seller of the telecommunications
4 services to the subscriber, or service or product sold
5 by the subscriber to the subscriber's customer. The
6 service is typically marketed under the name "900"
7 service, and any subsequent numbers designated by the
8 Federal Communications Commission,

9 c. Interstate and International "private communications
10 service". "Private communications service" means a
11 telecommunications service that entitles the customer
12 to exclusive or priority use of a communications
13 channel or group of channels between or among
14 termination points, regardless of the manner in which
15 such channel or channels are connected, and includes
16 switching capacity, extension lines, stations and any
17 other associated services that are provided in
18 connection with the use of such channel or channels,

19 d. "Value-added nonvoice data service". "Value-added
20 nonvoice data service" means a service that otherwise
21 meets the definition of telecommunications services in
22 which computer processing applications are used to act
23 on the form, content, code or protocol of the
24

1 information or data primarily for a purpose other than
2 transmission, conveyance, or routing,

3 e. Interstate and International telecommunications
4 service which is:

5 (1) rendered by a company for private use within its
6 organization, or

7 (2) used, allocated or distributed by a company to
8 its affiliated group,

9 f. Regulatory assessments and charges including charges
10 to fund the Oklahoma Universal Service Fund, the
11 Oklahoma Lifeline Fund and the Oklahoma High Cost
12 Fund, and

13 g. Telecommunications nonrecurring charges including but
14 not limited to the installation, connection, change,
15 or initiation of telecommunications services which are
16 not associated with a retail consumer sale;

17 19. Sales of railroad track spikes manufactured and sold for
18 use in this state in the construction or repair of railroad tracks,
19 switches, sidings, and turnouts;

20 20. Sales of aircraft and aircraft parts provided such sales
21 occur at a qualified aircraft maintenance facility. As used in this
22 paragraph, "qualified aircraft maintenance facility" means a
23 facility operated by an air common carrier including one or more
24 component overhaul support buildings or structures in an area owned,

1 leased, or controlled by the air common carrier, at which there were
2 employed at least two thousand (2,000) full-time-equivalent
3 employees in the preceding year as certified by the Oklahoma
4 Employment Security Commission and which is primarily related to the
5 fabrication, repair, alteration, modification, refurbishing,
6 maintenance, building, or rebuilding of commercial aircraft or
7 aircraft parts used in air common carriage. For purposes of this
8 paragraph, "air common carrier" shall also include members of an
9 affiliated group as defined by Section 1504 of the Internal Revenue
10 Code, 26 U.S.C., Section 1504. Beginning July 1, 2012, sales of
11 machinery, tools, supplies, equipment, and related tangible personal
12 property and services used or consumed in the repair, remodeling, or
13 maintenance of aircraft, aircraft engines or aircraft component
14 parts which occur at a qualified aircraft maintenance facility;

15 21. Sales of machinery and equipment purchased and used by
16 persons and establishments primarily engaged in computer services
17 and data processing:

- 18 a. as defined under Industry Group Numbers 7372 and 7373
19 of the Standard Industrial Classification (SIC)
20 Manual, latest version, which derive at least fifty
21 percent (50%) of their annual gross revenues from the
22 sale of a product or service to an out-of-state buyer
23 or consumer, and
24

1 b. as defined under Industry Group Number 7374 of the SIC
2 Manual, latest version, which derive at least eighty
3 percent (80%) of their annual gross revenues from the
4 sale of a product or service to an out-of-state buyer
5 or consumer.

6 Eligibility for the exemption set out in this paragraph shall be
7 established, subject to review by the Tax Commission, by annually
8 filing an affidavit with the Tax Commission stating that the
9 facility so qualifies and such information as required by the Tax
10 Commission. For purposes of determining whether annual gross
11 revenues are derived from sales to out-of-state buyers or consumers,
12 all sales to the federal government shall be considered to be to an
13 out-of-state buyer or consumer;

14 22. Sales of prosthetic devices to an individual for use by
15 such individual. For purposes of this paragraph, "prosthetic
16 device" shall have the same meaning as provided in Section 1357.6 of
17 this title, but shall not include corrective eye glasses, contact
18 lenses, or hearing aids;

19 23. Sales of tangible personal property or services to a motion
20 picture or television production company to be used or consumed in
21 connection with an eligible production. For purposes of this
22 paragraph, "eligible production" means a documentary, special, music
23 video or a television commercial or television program that will
24 serve as a pilot for or be a segment of an ongoing dramatic or

1 situation comedy series filmed or taped for network or national or
2 regional syndication or a feature-length motion picture intended for
3 theatrical release or for network or national or regional
4 syndication or broadcast. The provisions of this paragraph shall
5 apply to sales occurring on or after July 1, 1996. In order to
6 qualify for the exemption, the motion picture or television
7 production company shall file any documentation and information
8 required to be submitted pursuant to rules promulgated by the Tax
9 Commission;

10 24. Sales of diesel fuel sold for consumption by commercial
11 vessels, barges and other commercial watercraft;

12 25. Sales of tangible personal property or services to tax-
13 exempt independent nonprofit biomedical research foundations that
14 provide educational programs for Oklahoma science students and
15 teachers and to tax-exempt independent nonprofit community blood
16 banks headquartered in this state;

17 26. Effective May 6, 1992, sales of wireless telecommunications
18 equipment to a vendor who subsequently transfers the equipment at no
19 charge or for a discounted charge to a consumer as part of a
20 promotional package or as an inducement to commence or continue a
21 contract for wireless telecommunications services;

22 27. Effective January 1, 1991, leases of rail transportation
23 cars to haul coal to coal-fired plants located in this state which
24 generate electric power;

1 28. Beginning July 1, 2005, sales of aircraft engine repairs,
2 modification, and replacement parts, sales of aircraft frame repairs
3 and modification, aircraft interior modification, and paint, and
4 sales of services employed in the repair, modification, and
5 replacement of parts of aircraft engines, aircraft frame and
6 interior repair and modification, and paint;

7 29. Sales of materials and supplies to the owner or operator of
8 a ship, motor vessel, or barge that is used in interstate or
9 international commerce if the materials and supplies:

10 a. are loaded on the ship, motor vessel, or barge and
11 used in the maintenance and operation of the ship,
12 motor vessel, or barge, or

13 b. enter into and become component parts of the ship,
14 motor vessel, or barge;

15 30. Sales of tangible personal property made at estate sales at
16 which such property is offered for sale on the premises of the
17 former residence of the decedent by a person who is not required to
18 be licensed pursuant to the Transient Merchant Licensing Act, or who
19 is not otherwise required to obtain a sales tax permit for the sale
20 of such property pursuant to the provisions of Section 1364 of this
21 title; provided:

22 a. such sale or event may not be held for a period
23 exceeding three (3) consecutive days,
24

1 b. the sale must be conducted within six (6) months of
2 the date of death of the decedent, and

3 c. the exemption allowed by this paragraph shall not be
4 allowed for property that was not part of the
5 decedent's estate;

6 31. Beginning January 1, 2004, sales of electricity and
7 associated delivery and transmission services, when sold exclusively
8 for use by an oil and gas operator for reservoir dewatering projects
9 and associated operations commencing on or after July 1, 2003, in
10 which the initial water-to-oil ratio is greater than or equal to
11 five-to-one water-to-oil, and such oil and gas development projects
12 have been classified by the Corporation Commission as a reservoir
13 dewatering unit;

14 32. Sales of prewritten computer software that is delivered
15 electronically. For purposes of this paragraph, "delivered
16 electronically" means delivered to the purchaser by means other than
17 tangible storage media;

18 33. Sales of modular dwelling units when built at a production
19 facility and moved in whole or in parts, to be assembled on-site,
20 and permanently affixed to the real property and used for
21 residential or commercial purposes. The exemption provided by this
22 paragraph shall equal forty-five percent (45%) of the total sales
23 price of the modular dwelling unit. For purposes of this paragraph,
24 "modular dwelling unit" means a structure that is not subject to the

1 motor vehicle excise tax imposed pursuant to Section 2103 of this
2 title;

3 34. Sales of tangible personal property or services to:

- 4 a. persons who are residents of Oklahoma and have been
5 honorably discharged from active service in any branch
6 of the Armed Forces of the United States or Oklahoma
7 National Guard and who have been certified by the
8 United States Department of Veterans Affairs or its
9 successor to be in receipt of disability compensation
10 at the one-hundred-percent rate and the disability
11 shall be permanent and have been sustained through
12 military action or accident or resulting from disease
13 contracted while in such active service and registered
14 with the veterans registry created by the Oklahoma
15 Department of Veterans Affairs, or
- 16 b. the surviving spouse of the person in subparagraph a
17 of this paragraph if the person is deceased and the
18 spouse has not remarried and the surviving spouse of a
19 person who is determined by the United States
20 Department of Defense or any branch of the United
21 States military to have died while in the line of duty
22 if the spouse has not remarried. Sales for the
23 benefit of an eligible person to a spouse of the
24 eligible person or to a member of the household in

1 which the eligible person resides and who is
2 authorized to make purchases on the person's behalf,
3 when such eligible person is not present at the sale,
4 shall also be exempt for purposes of this paragraph.
5 The Oklahoma Tax Commission shall issue a separate
6 exemption card to a spouse of an eligible person or to
7 a member of the household in which the eligible person
8 resides who is authorized to make purchases on the
9 person's behalf, if requested by the eligible person.
10 Sales qualifying for the exemption authorized by this
11 paragraph shall not exceed Twenty-five Thousand
12 Dollars (\$25,000.00) per year per individual while the
13 disabled veteran is living. Sales qualifying for the
14 exemption authorized by this paragraph shall not
15 exceed One Thousand Dollars (\$1,000.00) per year for
16 an unremarried surviving spouse. Upon request of the
17 Tax Commission, a person asserting or claiming the
18 exemption authorized by this paragraph shall provide a
19 statement, executed under oath, that the total sales
20 amounts for which the exemption is applicable have not
21 exceeded Twenty-five Thousand Dollars (\$25,000.00) per
22 year per living disabled veteran or One Thousand
23 Dollars (\$1,000.00) per year for an unremarried
24 surviving spouse. If the amount of such exempt sales

1 exceeds such amount, the sales tax in excess of the
2 authorized amount shall be treated as a direct sales
3 tax liability and may be recovered by the Tax
4 Commission in the same manner provided by law for
5 other taxes including penalty and interest. The Tax
6 Commission shall promulgate any rules necessary to
7 implement the provisions of this paragraph, which
8 shall include rules providing for the disclosure of
9 information about persons eligible for the exemption
10 authorized in this paragraph to the Oklahoma
11 Department of Veterans Affairs, as authorized in
12 Section 205 of this title. For purposes of the
13 exemption authorized by this subparagraph, if the
14 disability determination that would have been made
15 while the disabled veteran was still living is not
16 made final until after the death of the disabled
17 veteran, the exemption authorized by this subparagraph
18 may still be claimed by the surviving spouse;

19 35. Sales of electricity to the operator, specifically
20 designated by the Corporation Commission, of a spacing unit or lease
21 from which oil is produced or attempted to be produced using
22 enhanced recovery methods including, but not limited to, increased
23 pressure in a producing formation through the use of water or
24 saltwater if the electrical usage is associated with and necessary

1 for the operation of equipment required to inject or circulate
2 fluids in a producing formation for the purpose of forcing oil or
3 petroleum into a wellbore for eventual recovery and production from
4 the wellhead. In order to be eligible for the sales tax exemption
5 authorized by this paragraph, the total content of oil recovered
6 after the use of enhanced recovery methods shall not exceed one
7 percent (1%) by volume. The exemption authorized by this paragraph
8 shall be applicable only to the state sales tax rate and shall not
9 be applicable to any county or municipal sales tax rate;

10 36. Sales of intrastate charter and tour bus transportation.
11 As used in this paragraph, "intrastate charter and tour bus
12 transportation" means the transportation of persons from one
13 location in this state to another location in this state in a motor
14 vehicle which has been constructed in such a manner that it may
15 lawfully carry more than eighteen persons, and which is ordinarily
16 used or rented to carry persons for compensation. Provided, this
17 exemption shall not apply to regularly scheduled bus transportation
18 for the general public;

19 37. Sales of vitamins, minerals, and dietary supplements by a
20 licensed chiropractor to a person who is the patient of such
21 chiropractor at the physical location where the chiropractor
22 provides chiropractic care or services to such patient. The
23 provisions of this paragraph shall not be applicable to any drug,
24

1 medicine, or substance for which a prescription by a licensed
2 physician is required;

3 38. Sales of goods, wares, merchandise, tangible personal
4 property, machinery, and equipment to a web search portal located in
5 this state which derives at least eighty percent (80%) of its annual
6 gross revenue from the sale of a product or service to an out-of-
7 state buyer or consumer. For purposes of this paragraph, "web
8 search portal" means an establishment classified under NAICS code
9 519130 which operates websites that use a search engine to generate
10 and maintain extensive databases of Internet addresses and content
11 in an easily searchable format;

12 39. Sales of tangible personal property consumed or
13 incorporated in the construction or expansion of a facility for a
14 corporation organized under Section 437 et seq. of Title 18 of the
15 Oklahoma Statutes as a rural electric cooperative. For purposes of
16 this paragraph, sales made to a contractor or subcontractor that has
17 previously entered into a contractual relationship with a rural
18 electric cooperative for construction or expansion of a facility
19 shall be considered sales made to a rural electric cooperative;

20 40. Sales of tangible personal property or services to a
21 business primarily engaged in the repair of consumer electronic
22 goods including, but not limited to, cell phones, compact disc
23 players, personal computers, MP3 players, digital devices for the
24 storage and retrieval of information through hard-wired or wireless

1 computer or Internet connections, if the devices are sold to the
2 business by the original manufacturer of such devices and the
3 devices are repaired, refitted or refurbished for sale by the entity
4 qualifying for the exemption authorized by this paragraph directly
5 to retail consumers or if the devices are sold to another business
6 entity for sale to retail consumers;

7 41. On or after July 1, 2019, and prior to July 1, 2024, sales
8 or leases of rolling stock when sold or leased by the manufacturer,
9 regardless of whether the purchaser is a public services corporation
10 engaged in business as a common carrier of property or passengers by
11 railway, for use or consumption by a common carrier directly in the
12 rendition of public service. For purposes of this paragraph,
13 "rolling stock" means locomotives, autocars, and railroad cars and
14 "sales or leases" includes railroad car maintenance and retrofitting
15 of railroad cars for their further use only on the railways;

16 42. Sales of gold, silver, platinum, palladium or other bullion
17 items such as coins and bars and legal tender of any nation, which
18 legal tender is sold according to its value as precious metal or as
19 an investment. As used in the paragraph, "bullion" means any
20 precious metal including, but not limited to, gold, silver,
21 platinum, and palladium, that is in such a state or condition that
22 its value depends upon its precious metal content and not its form.
23 The exemption authorized by this paragraph shall not apply to
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1 fabricated metals that have been processed or manufactured for
2 artistic use or as jewelry; ~~and~~

3 43. Recovery fees on the rental charge from any item of heavy
4 equipment property rental as provided for in Section 2 of this act;

5 44. Sales of firearm safes and firearm safety devices. As used
6 in this paragraph, "firearm safe" means a locking container or other
7 enclosure, excluding glass-faced containers, equipped with a
8 padlock, key lock, combination lock, or other locking device that is
9 designed and intended for the secure storage of one or more
10 firearms, and "firearm safety device" means a device that, when
11 installed on a firearm, is designed to prevent the firearm from
12 being operated without first deactivating the device or a device to
13 be equipped or installed on a firearm that is designed to prevent
14 the operation of the firearm by anyone who does not have authorized
15 access to the firearm; and

16 45. Sales of Level 2 and higher retention holsters. As used in
17 this paragraph, "Level 2 retention holsters" means any firearm
18 holster that uses friction plus any other kind of active retention.

19 SECTION 4. This act shall become effective November 1, 2025.
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